

25STCV13419 25STCV13419

County: los-angeles

Division: Civil Law and Motion

Department: 511

Hearing date: 2026-07-21

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Case Number: 25STCV13419 Hearing Date: July 21, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: July

21, 2026

CASE NAME: Gossamer

Fourteen, LLC v. Sang Chyun aka Daniel Chyun

CASE NO.: 25STCV13419

MOTION

FOR ATTORNEYS' FEES

MOVING PARTY: Plaintiff

Gossamer Fourteen, LLC

RESPONDING PARTY(S): None

REQUESTED RELIEF:

1. An

order awarding \$22,012.50 in attorneys' fees.

TENTATIVE RULING:

1. Motion

for attorneys' fees is granted for a total award of \$\$22,012.50.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On May 7, 2025, Plaintiff Gossamer Fourteen, LLC (Plaintiff) filed a complaint against Defendant Sang Chyun aka Daniel Chyun (Defendant) with two causes of action for: (1) breach of contract; and (2) promissory fraud.

According to the complaint, the parties entered into a written lease agreement for commercial space on July 1, 2019. Plaintiff alleges that Defendant promised to do work to maintain and repair the other units on the property in exchange for a rent reduction. Plaintiff further alleges that Defendant breached the agreements in various ways and his promise was falsely made to induce Plaintiff to lease the premises to Defendant.

On June 4, 2025, Defendant filed an answer.

On October 17, 2025, a non-jury trial commenced and concluded. The court awarded judgment for Plaintiff on the first cause of action for breach of contract for \$37,310.00 and judgment for Defendant on the second cause of action.

On December 10, 2025, the court entered judgment for \$38,976.17 in damages and prejudgment interest with attorneys' fees and costs per code.

On December 16, 2025, Plaintiff filed a memorandum of costs seeking \$772.31 in costs.

On January 30, 2026, Plaintiff filed the instant motion for attorneys' fees. On April 24, 2026, Plaintiff filed a supplemental declaration regarding electronic service in support of their motion. On April 27, 2026, Plaintiff filed a second supplemental declaration.

On April 30, 2026, the motion was called for hearing. After oral argument, the court continued the hearing to July 21, 2026 to afford Defendant an opportunity to file an opposition.[1]

As of July 16, 2026, the court has not received any

opposition.

LEGAL STANDARD:

With respect to attorney fees and costs, unless they are specifically provided for by statute (e.g., Cal. Code Civ. Proc. (CCP) §§ 1032, et seq.), the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties. (CCP § 1021.)

The court, upon notice and motion by a party, shall determine the prevailing party and shall fix, as an element of the costs of suit, the reasonable attorney fees. (Civ. Code § 1717(a), (b).) Any notice of motion to claim attorney fees as an element of costs under shall be served and filed before or at the same time the memorandum of costs is served and filed; if only attorney fees are claimed as costs, the notice of motion shall be served and filed within the time specified in CRC 3.1700 for filing a memorandum of costs. (CRC 3.1702; *Gunlock Corp. v. Walk on Water, Inc.* (1993) 15 Cal.App.4th 1301, 1303, fn. 1.)

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion. [Citation.]" (Melnik v. Robledo (1976) 64 Cal.App.3d 618, 623-624.) The fee setting inquiry in California ordinarily "begins with the 'lodestar' [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) "[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (Margolin v. Reg'l Planning Comm'n (1982) 134 Cal.App.3d 999, 1004.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See *Serrano v. Priest* (1977) 20 Cal.3d 25, 49 [discussing factors relevant to proper attorneys' fees award].) Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (Id. at

48, fn. 23.) The factors considered in determining the modification of the lodestar include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Mountjoy v. Bank of Am. (2016) 245 Cal.App.4th 266, 271.)

In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. (Premier Medical Management Systems, Inc. v. California Ins. Guaranty Assoc. (2008) 163 Cal.App.4th 550, 564.) General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. (Ibid.)

ANALYSIS:

Plaintiff is the prevailing party pursuant to the judgment after bench trial and can recover attorneys' fees pursuant to their lease agreement.

Rate

Plaintiff provides that following hourly rates: \$635 for Mark Share; \$475 for Stacy Bandhold; and \$395 for Craig Newton.

“In determining hourly rates, the court must look to the “prevailing market rates in the relevant community.” (Bell v. Clackamas County (9th Cir.2003) 341 F.3d 858, 868.) The rates of comparable attorneys in the forum district are usually used. (See Gates v. Deukmejian (9th Cir.1992) 987 F.2d 1392, 1405.) In making its calculation, the court should also consider the experience, skill, and reputation of the attorney requesting fees.” (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.)

The hourly rates here appear appropriate. However, billing at a high rate comes with the expectation that the attorney also works in an efficient manner that reflects the premium paid for his or her services. The court considers this fact in addressing the reasonableness of the hours expended, below.

Hours

Plaintiff seeks to recover 41.50 hours of work on this matter. Plaintiffs have provided a fee bill in support.

"The basis for the trial court's calculation must be the actual hours counsel has devoted to the case, less those that result from inefficient or duplicative use of time." (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 395.) "The law is clear, however, that an award of attorney fees may be based on counsel's declarations, without production of detailed time records." (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.)

Here, there is no opposition to the fees sought. Nonetheless, the Court has reviewed the detailed fee bill with an eye for excessive, duplicative or unreasonable charges as contended by Defendant. After a careful review, the Court finds that the hours were reasonable.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion for attorneys' fees is granted for a total award of \$22,012.50.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 21, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

The court previously expressed concern that the record did not establish timely service of the motion on Defendant and tentatively denied the motion based on the resulting potential prejudice. Defendant thereafter appeared, demonstrating

actual notice of the motion. The court continued the hearing and provided Defendant additional time to file opposition to eliminate any prejudice arising from the service issue. Defendant filed no opposition within the time allowed. Because Defendant has now had notice and a full opportunity to be heard, the court addresses the motion on its merits.